



File No.: EXP202210702

RESOLUTION OF ARCHIVE OF PROCEEDINGS

From the proceedings carried out by the Spanish Agency for Data Protection and based on the following;

FACTS

FIRST: On August 17, 2022, a complaint was filed with the Spanish Agency for Data Protection against the City Council of Gijón, the Gijón Handball Club, and the Municipal Sports Board of Gijón. The reasons for the complaint are as follows:

On July 16, 2022, the complainant sent an inquiry to the data protection officer that has not been answered.

In the aforementioned document, they requested information regarding the following issues:

1º To determine the criterion that legitimized the dissemination of images of minors on the website and social media of the sports board. In this regard, they indicated that they do not recall having authorized the dissemination of images of their daughter (which is currently visible).

2º To specify which of the activities listed in the inventory of the processing activities register published by the respondent corresponds to the one carried out by the sports schools of the Sports Board.

3º To respond regarding when and by what means they have evidence that the holders of parental authority or guardianship of children from 1st to 6th grade who participate in the sports schools have received the information required by Articles 13 and 14 of the GDPR.

4º Whether they have data protection contracts with all the data processors of the sports schools of the Sports Board.

5º Whether an impact assessment has been carried out.

6º Whether the respondent complies with the security measures established in the first additional provision of the LOPDGDD.

7º Whether the security breach that occurred on April 19, 2022, had been notified to the AEPD.

Along with the complaint, the following documents were provided:

- A copy of the email sent to the data protection officer of the City Council of Gijón (***EMAIL.1), dated June 16, 2022, in which they request the aforementioned points and provide the web addresses of the publications of the photographs of the Gijón handball club.

- A copy of the email sent to the data protection officer of the City Council requesting access to the register of processing activities of the City Council and the municipal sports board, dated February 14, 2020.

- A copy of the resolution of Warning from the Agency of the sanctioning procedure PS/00427/2020 regarding a complaint filed by the complainant on June 17, 2020, for not having a Register of Processing Activities.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the City Council of Gijón, so that it could analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in the data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was recorded on October 13, 2022, as stated in the certificate in the file.

On November 14 and 23, 2022, a response was received from the City Council in which it was stated: The City Council states that due to the forwarding of the complaint made by the Agency, an administrative file has been opened in which information has been requested from the Municipal Sports Board.

From the information gathered regarding the sports activities carried out by the Autonomous Body Municipal Sports Board in the so-called "Sports Schools" programs, in exercise of the municipal competence in the promotion of sports and sports facilities and leisure activities as provided in Article 25.2.I) of Law 7/1985, of April 2, Regulating the Bases of Local Regime, which establishes: "The

Municipality shall exercise, in any case, as its own competences, in accordance with the terms of the legislation of the State and the Autonomous Communities, in the following matters... Promotion of sports and sports facilities and leisure activities."

And the Board has established collaboration with Educational Centers in Gijón, public, concerted, and private, through annual calls, in whose bases it is specified that the registrations and management of the sports activities will be carried out by the School Council of each beneficiary Educational Center. Likewise, the Municipal Sports Board subscribes collaboration agreements with sports clubs, such as the one with the Gijón Handball Club, for the purpose of "promoting High-Level Handball and Base Sports (Sports Schools)."

The City Council states that the published images are located at C/ Jorge Juan, 6

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web of the City Council and regarding the register of Treatment Activities, approved by the Mayor's Resolution of June 21, 2021, published in BOPA No. 126, of July 1, 2021, and on the municipal website, sports activities are framed within the "RAT039 Sports Services," whose purpose of processing is the "Management of information, programs, and provision of sports services," including among the categories of personal data those of image and "other information necessary for the activities (such as authorizations for minors)."

THIRD: On November 17, 2022, in accordance with Article 65 of the LOPDGDD, the complaint submitted was admitted for processing.

FOURTH: The General Sub-Directorate of Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to the control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions established in Title VII, Chapter I, Section Two, of the LOPDGDD, being aware of the following points:

On March 2 and 3, 2023, new complaints were received from the complainant reporting the existence of two sanctioning procedures motivated by his complaints (PS/00285/2020 to the Handball Federation of the Principality of Asturias and PS/00427/2020 against the City Council of Gijón). He provided written authorizations for the processing of data of minors from the Gijón Handball Club and from the Spanish Handball Federation, as well as a written complaint against the Gijón Handball Club in which he submitted, among other documentation, Regulations for sports schools 2020/2021, Statutes of the Gijón Handball Club, information about the aforementioned club on the Transparency portal of the City Council, and an email sent to the data protection delegate of the City Council and to the Mayor, including documents submitted in his complaints.

In relation to the sanctioning procedures motivated by the complainant's previous complaints and related to this complaint:

- PS/00285/2020 to the Handball Federation of the Principality of Asturias:

Complaint regarding:

- o The Federation has not designated a Data Protection Officer.

- o In none of the forms used by the Federation, which are listed on its website, is authorization requested for the processing of personal data. Furthermore, the forms refer to the repealed LO 15/1999 (LOPD).

- o There is evidence of the dissemination of images of minors without the express consent of their parents or guardians.

Resolution dated March 24, 2021, in which a Warning is issued for violation of Article 13 of the GDPR regarding the non-adaptation of its personal data protection policy to the new applicable regulations and for the violation of the ar-

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Article 37 of the GDPR, as no Data Protection Officer was designated, was not aware of the present sanctioning procedure.

- PS/00427/2020 to the City Council of Gijón. Complaint regarding an email sent to the DPO of the City Council on February 14, 2020, to inquire about the register of processing activities and whether the processing activities of the Municipal Sports Board of the aforementioned City Council (which has not declared a DPO) depend on the same DPO (that of the City Council), and where it can be accessed. No response from the DPO is recorded.

Resolution dated June 29, 2021: Warning for violation of Articles 30 of the GDPR and 31 of the LOPDGDD for not having a Register of processing activities.

In relation to information from the Register of Processing Activities and the publication of photographs of minors.

On February 23, 2023, the Data Inspection accessed the website <https://www.gijon.es/es/publicaciones/inventario-del-registro-de-actividades-de-tratamiento-de-datos-personales> of the City Council, proceeding to download the document INVENTORY OF THE REGISTER OF PROCESSING ACTIVITIES OF PERSONAL DATA of the City Council of Gijón; also available at the address "Inventory of the Register of Processing Activities of Personal Data in the Municipal Administration of Gijón/Xixón. (City Council of Gijón/Xixón, its Autonomous Bodies, and the Municipal Companies for Economic Development and Promotion (Municipal Business Center of Gijón/Xixón, Divertia Gijón/Xixón, and Municipal Housing Company of Gijón/Xixón), dated June 16, 2021" provided by the complainant.

In the downloaded document, the processing SERVICES SPORTS is found with the purpose of "Management of information, programs, and provision of sports services." In the section on Legal Basis or lawfulness of the processing activity, Articles 6.1.a), 6.1.c), 6.1.d), and 6.1.e) and 9.2.a) of the GDPR; Article 8 of the LOPD along with other specific regulations are listed. Among the categories of data is: "Other information necessary for the activities (such as authorizations for minors)."

On February 23, 2023, the Data Inspection accessed some of the addresses provided by the complainant, verifying the publication of photographs of the Gijón Handball Club, among which are photos of minors, including the complainant's daughter.

In relation to information received during the inspection proceedings

On March 1, 2023, requests for information were sent to the City Council, the Board, and the Gijón Handball Club (hereinafter the Club).

On March 2, 2023, information was received from the City Council, in which it is stated:

The Club informs legal guardians about the data protection policy and they must sign a consent form. In the document where consent is requested.

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It details:

- Activity of the processing (Execution and use of images and information of ... players and minors),
- Data controller (Handball Club and complete postal address)
- Purpose (Collection of photographs and videos taken during the sports session,...).
- Collected data (Identifying and image data).
- Legitimacy (Legal relationship that arises for the execution of the activity. Consent of the interested parties).
- Data transfer (Data will not be transferred to third parties unless legally required and/or with the express consent of the interested party)
- Rights and their exercise, indicating the address of the controller, the email address, and informing of the possibility to file a complaint with the supervisory authority.

The authorization document for the processing of minors' data from the Handball Club Gijón is signed

by the claimant in their capacity as guardian, dated January 2, 2021. It also grants consent by checking the box to the right, for advertising communications and the use of personal data in any medium (direct marketing, social networks, email) for the promotion of the Handball Club.

On March 16 and 27, a response was received from the City Council regarding the request letter, which states the following:

The City Council has been informed of the requests issued from the Data Inspection to the Board and the Club, and states that an administrative file has been opened whose resolution depends on the Mayor's Office, and therefore they assume the response to the requests.

According to its Statutes, the Board is constituted as an autonomous administrative body under the protection of Article 85 of the Law Regulating the Bases of Local Regime, as a Public Foundation of Services, created with its own legal personality and financial and functional autonomy dependent on the City Council of Gijón.

The Data Inspection has verified the existence of the Board's statutes on the City Council's website at the address gijon.es.

The City Council states that "taking into consideration the opinion issued by the Information Security and Privacy Committee of the City Council, in session on September 15, 2022, in the sports activities subject to the complaint, the Municipal Sports Board assumes the position of Data Processor, without prejudice to its relationships with the entities participating in the 'Sports Schools' programs, since, among other reasons, the Board develops the City Council's competencies in promoting sports activity in accordance with the provisions of Law 2/1985, of April 7, regulating the Bases of Local Regime."

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Regarding the inquiry to the data protection officer made by the claimant:

In the document where consent is requested for the processing of the execution and use of images mentioned in previous points, it states as a legitimizing basis the legal relationship for the activity and the consent of the interested party. Additionally, this document signed by the claimant has been provided.

Regarding the Register of Processing Activities, approved by the Mayor's Resolution of June 21, 2021, published in BOPA No. 126, of July 1, 2021, and on the municipal website, the sports activities fall under "RAT039 Sports Services," whose purpose of processing is the "Management of information, programs, and provision of sports services," including among the categories of personal data those of image and "other information necessary for the activities (such as authorizations for minors)."

In relation to the information provided to guardians regarding data protection, the City Council has provided the following documentation:

Annex I.- Instructions for the management of images by the Municipal Sports Board

Annex II. Authorization models for the processing of images of adults

Annex III. Authorization model for the processing of images of minors

Annex IV. Communication / Circular to clubs and entities providing services in the Sports Schools of Gijón

Annex V. Communication / Circular to Educational Centers recipients of the Sports Schools of Gijón and other sports activities promoted by the City Council of Gijón through the Municipal Sports Board.

A Collaboration Agreement between the Municipal Sports Board and the Handball Club Gijón for the promotion of high-level handball and grassroots sports for the 2021/2022 season and Annex I Information on Data Protection has been provided.

The City Council states that "In consideration of the definition, nature, and purpose of the Data

Protection Impact Assessment (Article 35 GDPR, Recital 84 GDPR; Article 28 GDPR and the indicative lists published by the AEPD regarding data processing that require a DPIA and those that do not), the processing carried out does not meet the conditions for conducting impact assessments, not posing a high risk to the rights and freedoms of the affected individuals.”

Regarding the security breach:

On April 22, 2022, an initial notification was made to the AEPD (...).

On June 3, 2022, a complete notification was made, providing a report on the breach. This report includes:

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On April 20, 2022, the Information Security and Privacy Committee convened urgently, agreeing to formally establish itself as the “Crisis Committee for the response to the security incident of April 19, 2022.”

(...)

General summary of the main containment measures:

(...)

Regarding the intervention of the Data Protection Officer, these correspond to the competencies attributed under the GDPR and LOPDGDD, as well as those implemented by the City Council defined in the Mayor's Resolution of March 3, 2021, published in the Official Gazette of the Principality of Asturias No. 57 of March 24, 2021, also holding a seat on the Information Security and Privacy Committee, according to the Mayor's Resolution of September 13, 2021, published in the Official Gazette of the Principality of Asturias No. 188 of September 29, 2021.

LEGAL GROUNDS

I

Competence

In accordance with the functions conferred to each supervisory authority by Article 57.1 a), f) and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to resolve these investigative actions.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection will be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, to the extent that they do not contradict them, by the general rules on administrative procedures in a subsidiary manner."

II

Lawfulness of processing

Article 6 of the GDPR, which regulates the lawfulness of processing, establishes the following:

"1. Processing shall be lawful only if at least one of the following conditions is met:

- a) the data subject has given consent to the processing of their personal data for one or more specific purposes;
- b) processing is necessary for the performance of a contract to which the data subject is a party or for the implementation at the request of the data subject of pre-contractual measures;
- c) processing is necessary for compliance with a legal obligation to which the data controller is subject;
- d) processing is necessary to protect the vital interests of the data subject or of another natural person;
- e) processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller;
- f) processing is necessary for the purposes of the legitimate interests pursued by the data controller or by a third party, provided that such interests are not overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular when the data

subject is a child.

The provision in point f) of the first paragraph shall not apply to processing carried out by public authorities in the performance of their tasks.

2. Member States may maintain or introduce more specific provisions to adapt the application of the rules of this Regulation with respect to processing under paragraph 1, points c) and e), specifying more precisely the specific requirements for processing and other measures that ensure lawful and fair processing, including other specific situations of processing under Chapter IX.

3. The basis for processing referred to in paragraph 1, points c) and e), shall be established by:

a) Union law, or

b) the law of the Member States applicable to the data controller.

The purpose of the processing must be determined in that legal basis or, with respect to the processing referred to in paragraph 1, point e), must be necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller. This legal basis may contain specific provisions to adapt the application of the rules of this Regulation, among others: the general conditions governing the lawfulness of processing by the controller; the types of data subject to processing; the affected data subjects; the entities to which personal data may be communicated and the purposes of such communication; the limitation of purpose; the retention periods for the data, as well as the operations and procedures of processing, including measures to ensure lawful and fair processing, such as those relating to other specific situations of processing under Chapter IX. Union law or the law of the Member States shall pursue a public interest objective and shall be proportionate to the legitimate aim pursued.

4. When processing for a purpose other than that for which the personal data were collected is not based on the consent of the data subject or on Union law or the law of the Member States that constitutes a necessary measure

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and proportionate in a democratic society to safeguard the objectives indicated in Article 23, paragraph 1, the data controller, in order to determine whether the processing for another purpose is compatible with the purpose for which the personal data were initially collected, shall take into account, among other things:

a) any relationship between the purposes for which the personal data were collected and the purposes of the intended further processing;

b) the context in which the personal data were collected, in particular with regard to the relationship between the data subjects and the data controller;

c) the nature of the personal data, in particular when special categories of personal data are processed, in accordance with Article 9, or personal data related to criminal convictions and offenses, in accordance with Article 10;

d) the possible consequences for the data subjects of the intended further processing;

e) the existence of appropriate safeguards, which may include encryption or pseudonymization."

III

Transparency of information, communication, and modalities for exercising the rights of the data subject

Article 12 of the GDPR stipulates:

"1. The data controller shall take appropriate measures to provide the data subject with all information referred to in Articles 13 and 14, as well as any communication under Articles 15 to 22 and 34 relating to processing, in a concise, transparent, intelligible, and easily accessible form, using clear and plain language, in particular any information specifically addressed to a child. The information shall be provided in writing or by other means, including, where appropriate, by electronic means. When requested by the data subject, the information may be provided orally, provided that the identity of the data subject is demonstrated by other means.

2. The data controller shall facilitate the exercise of the data subject's rights under Articles 15 to 22. In the cases referred to in Article 11, paragraph 2, the controller shall not refuse to act on the request of the data subject to exercise their rights under Articles 15 to 22, unless it can demonstrate that it is not in a position to identify the data subject.

3. The data controller shall provide the data subject with information regarding its actions based on a request under Articles 15 to 22, without undue delay and, in any case, within one month of receiving the request. This period may be extended by a further two months if necessary, taking into account the complexity and number of requests. The controller shall inform the data subject of any such extensions within one month of receiving the request, indicating the reasons for the delay. When the data subject submits the request by electronic means, the information shall be provided by electronic means where possible, unless the data subject requests otherwise.

4. If the data controller does not take action on the data subject's request, it shall inform them without undue delay, and at the latest within one month of receiving the request."

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of the reasons for its non-action and the possibility of filing a complaint with a supervisory authority and exercising legal actions.

5. The information provided pursuant to Articles 13 and 14, as well as all communication and any action taken under Articles 15 to 22 and 34, shall be free of charge. When requests are manifestly unfounded or excessive, particularly due to their repetitive nature, the data controller may:

- a) charge a reasonable fee based on the administrative costs incurred to provide the information or communication or to carry out the requested action, or
- b) refuse to act on the request.

The data controller shall bear the burden of demonstrating the manifestly unfounded or excessive nature of the request.

6. Without prejudice to the provisions of Article 11, when the data controller has reasonable doubts regarding the identity of the individual making the request referred to in Articles 15 to 21, they may request the provision of additional information necessary to confirm the identity of the data subject.

7. The information that must be provided to data subjects pursuant to Articles 13 and 14 may be transmitted in combination with standardized icons that allow for a readily visible, intelligible, and clearly legible overview of the intended processing. The icons presented in electronic format shall be machine-readable.

8. The Commission shall be empowered to adopt delegated acts in accordance with Article 92 to specify the information to be presented through icons and the procedures for providing standardized icons."

IV

Information to be provided when personal data is obtained from the data subject

Article 13 of the GDPR establishes the information that must be provided when personal data is obtained from the data subject, pursuant to which:

"1. When personal data relating to a data subject is obtained from the data subject, the data controller shall provide all the information indicated below at the time of obtaining such data:

- a) the identity and contact details of the controller and, where applicable, of their representative;
- b) the contact details of the data protection officer, where applicable;
- c) the purposes of the processing for which the personal data are intended and the legal basis for the processing;
- d) when the processing is based on Article 6(1)(f), the legitimate interests of the controller or a third party;
- e) the recipients or categories of recipients of the personal data, where applicable;
- f) where applicable, the intention of the controller to transfer personal data to a third country or international organization and the existence or absence of an adequacy decision by the Commission,

or, in the case of transfers referred to in Articles 46 or 47 or Article 49(1), second paragraph, reference to the appropriate or suitable safeguards and the means to obtain a copy of these or the place where they have been made available.

2. In addition to the information mentioned in paragraph 1, the data controller shall provide the data subject, at the time the personal data is obtained, with the following information necessary to ensure fair and transparent data processing:

- a) the period for which the personal data will be stored or, if not possible, the criteria used to determine that period;
- b) the existence of the right to request from the data controller access to personal data relating to the data subject, and their rectification or erasure, or the restriction of processing, or to object to processing, as well as the right to data portability;
- c) when the processing is based on Article 6(1)(a) or Article 9(2)(a), the existence of the right to withdraw consent at any time, without affecting the lawfulness of processing based on consent before its withdrawal;
- d) the right to lodge a complaint with a supervisory authority;
- e) whether the communication of personal data is a legal or contractual requirement, or a requirement necessary to enter into a contract, and whether the data subject is obliged to provide the personal data and is informed of the possible consequences of not providing such data;
- f) the existence of automated decision-making, including profiling, referred to in Article 22(1) and (4), and, at least in such cases, meaningful information about the logic involved, as well as the significance and the envisaged consequences of such processing for the data subject.

3. When the data controller intends to further process personal data for a purpose other than that for which it was collected, they shall provide the data subject, prior to that further processing, with information about that other purpose and any other pertinent information in accordance with paragraph 2.

The provisions of paragraphs 1, 2, and 3 shall not apply when and to the extent that the data subject already has the information."

V

Processor

The provisions regarding the processor are set out in Article 28 of the GDPR, which stipulates the following:

"1. When processing is to be carried out on behalf of a data controller, the controller shall choose only a processor that provides sufficient guarantees to implement appropriate technical and organizational measures, in such a manner that the processing will meet the requirements of this Regulation and ensure the protection of the rights of the data subject.

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2. The data processor shall not engage another processor without the prior written authorization, specific or general, of the controller. In the latter case, the processor shall inform the controller of any planned changes regarding the incorporation or substitution of other processors, thus giving the controller the opportunity to oppose such changes.

3. The processing by the processor shall be governed by a contract or other legal act in accordance with the law of the Union or of the Member States, which binds the processor to the controller and establishes the subject matter, duration, nature, and purpose of the processing, the type of personal data and categories of data subjects, and the obligations and rights of the controller. Such contract or legal act shall stipulate, in particular, that the processor:

- a) shall process personal data only on documented instructions from the controller, including with regard to the transfers of personal data to a third country or an international organization, unless required to do so by Union law or the law of the Member States applicable to the processor; in such a case, the processor shall inform the controller of that legal requirement prior to the processing, unless

that law prohibits such information on important grounds of public interest;

b) shall ensure that persons authorized to process personal data have committed themselves to confidentiality or are under an appropriate statutory obligation of confidentiality;

c) shall take all necessary measures in accordance with Article 32;

d) shall respect the conditions laid down in paragraphs 2 and 4 to engage another processor;

e) shall assist the controller, taking into account the nature of the processing, by means of appropriate technical and organizational measures, insofar as this is possible, so that the controller can comply with its obligation to respond to requests for the exercise of the rights of data subjects as laid down in Chapter III;

f) shall assist the controller in ensuring compliance with the obligations laid down in Articles 32 to 36, taking into account the nature of the processing and the information available to the processor;

g) at the choice of the controller, shall delete or return all personal data after the end of the provision of processing services, and shall delete existing copies unless Union or Member State law requires storage of the personal data;

h) shall make available to the controller all information necessary to demonstrate compliance with the obligations laid down in this Article, as well as to allow and contribute to audits, including inspections, conducted by the controller or another auditor authorized by the controller.

In relation to the provision in point h) of the first paragraph, the processor shall immediately inform the controller if, in its opinion, an instruction infringes this Regulation or other provisions on data protection of the Union or of the Member States.

4. When a processor engages another processor to carry out specific processing activities on behalf of the controller, the same obligations shall be imposed on this other processor, through a contract or other legal act established in accordance with the law of the Union or of the Member States.

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of data protection than those stipulated in the contract or other legal act between the controller and the processor referred to in paragraph 3, in particular the provision of sufficient guarantees for the application of appropriate technical and organizational measures in such a way that the processing is in compliance with the provisions of this Regulation. If that other processor fails to comply with its data protection obligations, the initial processor shall remain fully responsible to the controller for the compliance with the obligations of the other processor.

5. The adherence of the processor to a code of conduct approved pursuant to Article 40 or to a certification mechanism approved pursuant to Article 42 may be used as an element to demonstrate the existence of the sufficient guarantees referred to in paragraphs 1 and 4 of this Article.

6. Without prejudice to the fact that the controller and the processor enter into an individual contract, the contract or other legal act referred to in paragraphs 3 and 4 of this Article may be based, in whole or in part, on the standard contractual clauses referred to in paragraphs 7 and 8 of this Article, including when they form part of a certification granted to the controller or processor in accordance with Articles 42 and 43.

7. The Commission may establish standard contractual clauses for the matters referred to in paragraphs 3 and 4 of this Article, in accordance with the examination procedure referred to in Article 93, paragraph 2.

8. A supervisory authority may adopt standard contractual clauses for the matters referred to in paragraphs 3 and 4 of this Article, in accordance with the consistency mechanism referred to in Article 63.

9. The contract or other legal act referred to in paragraphs 3 and 4 shall be in writing, including in electronic format.

10. Without prejudice to the provisions of Articles 82, 83, and 84, if a processor infringes this Regulation by determining the purposes and means of the processing, it shall be considered responsible for the processing in relation to that processing."

VI

Impact assessment regarding data protection

The impact assessment regarding data protection is regulated in Article 35 of the GDPR in the following terms:

"1. When it is likely that a type of processing, in particular if it uses new technologies, by its nature, scope, context, or purposes, entails a high risk to the rights and freedoms of natural persons, the controller shall carry out, prior to the processing, an assessment of the impact of the processing operations on the protection of personal data. A single assessment may address a series of similar processing operations that entail similar high risks.

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2. The data controller shall seek the advice of the data protection officer, if appointed, when conducting the data protection impact assessment.

3. The data protection impact assessment referred to in paragraph 1 shall be required particularly in the case of:

- a) systematic and comprehensive evaluation of personal aspects of natural persons based on automated processing, such as profiling, and on which decisions are made that produce legal effects for the natural persons or that significantly affect them in a similar manner;
- b) large-scale processing of special categories of data referred to in Article 9, paragraph 1, or of personal data relating to criminal convictions and offenses referred to in Article 10, or
- c) systematic large-scale observation of a publicly accessible area.

4. The supervisory authority shall establish and publish a list of the types of processing operations that require a data protection impact assessment in accordance with paragraph 1. The supervisory authority shall communicate these lists to the Committee referred to in Article 68.

5. The supervisory authority may also establish and publish a list of the types of processing that do not require data protection impact assessments. The supervisory authority shall communicate these lists to the Committee.

6. Before adopting the lists referred to in paragraphs 4 and 5, the competent supervisory authority shall apply the consistency mechanism provided for in Article 63 if those lists include processing activities related to the offering of goods or services to data subjects or to the observation of their behavior in several Member States, or processing activities that may substantially affect the free movement of personal data within the Union.

7. The assessment shall include at least:

- a) a systematic description of the intended processing operations and the purposes of the processing, including, where appropriate, the legitimate interest pursued by the data controller;
- b) an assessment of the necessity and proportionality of the processing operations in relation to their purpose;
- c) an assessment of the risks to the rights and freedoms of the data subjects referred to in paragraph 1, and
- d) the measures envisaged to address the risks, including safeguards, security measures, and mechanisms that ensure the protection of personal data, and to demonstrate compliance with this Regulation, taking into account the rights and legitimate interests of the data subjects and other affected persons.

8. Compliance with the approved codes of conduct referred to in Article 40 by the respective controllers or processors shall be duly taken into account when assessing the impact of the processing operations carried out by such controllers or processors, particularly for the purposes of the data

protection impact assessment.

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9. Where appropriate, the controller shall seek the opinion of the data subjects or their representatives regarding the intended processing, without prejudice to the protection of public or commercial interests or the security of the processing operations.

10. When the processing based on Article 6, paragraph 1, letters c) or e), has its legal basis in Union law or in the law of the Member State applicable to the data controller, such law regulates the specific processing operation or set of operations in question, and a data protection impact assessment has already been carried out as part of a general impact assessment in the context of the adoption of such legal basis, paragraphs 1 to 7 shall not apply unless Member States consider it necessary to carry out such assessment prior to the processing activities.

11. If necessary, the controller shall examine whether the processing is in compliance with the data protection impact assessment, at least when there is a change in the risk posed by the processing operations."

VII

Consent of Minors

In the terms indicated in Article 7.2 of the LOPDGDD, "The processing of data of minors under fourteen years of age, based on consent, shall only be lawful if the consent of the holder of parental authority or guardianship is obtained, to the extent determined by the holders of parental authority or guardianship."

VIII

Conclusion

The complaint is based on a series of questions sent to the DPO of the Gijón City Council regarding data protection.

1st Criterion that legitimized the dissemination of images of minors on the website and social media of the HANDBALL CLUB GIJÓN. It indicates that it does not remember having authorized the dissemination of images of his daughter.

It has been verified that the websites provided in the complaint contain photographs from the Handball Club of Gijón, including photos of minors, including the daughter of the complainant.

Regarding the consent for the publication of the image of the complainant's daughter, a written authorization for the processing of data of minors from the Handball Club Gijón has been provided, signed by the complainant in his capacity as guardian, dated January 2, 2021. The document states as an activity the Realization and use of images and information of... players and minors.

That is to say, the processing of the images of the minor is legitimized by the informed and written consent of her guardian.

2nd That activity that appears in the inventory of the activity register of

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The treatment is that carried out by the sports schools.

It has been verified that the web address <https://www.gijon.es/es/publicaciones/inventario-del-registro-de-actividades-de-tratamiento-de-datos-personales> includes the Register of Treatment Activities and the treatment "RAT039 Sports Services," whose purpose is "Management of information, programs, and provision of sports services," including among the categories of personal data those of image and "other information necessary for the activities (such as authorizations for minors)."

Therefore, the activity carried out at the Municipal Sports Board is recorded in the Register of

Treatment Activities of the City Council of Gijón.

3º Procedure for informing about data protection to the guardians of minors participating in the sports schools.

The City Council has provided authorization models for the treatment of images that include information regarding: Activity of the treatment, Responsible party, Purpose, Collected data, Legitimization, Data transfer, Rights and their exercise, as well as boxes to grant consent for commercial communications.

Additionally, they have provided communications and circulars to the clubs and entities that provide services in the Sports Schools of Gijón with information about data protection.

4º Data protection contracts with all data processors of the sports schools.

A Collaboration Agreement has been provided between the Municipal Sports Board and the Gijón Handball Club for the promotion of high-level handball and grassroots sports for the 2021/2022 season and Annex I of Information on Data Protection.

5º Impact assessment.

The City Council states that according to "Article 35 GDPR, Recital 84 GDPR; Article 28 GDPR and the indicative lists published by the AEPD regarding data processing that require a DPIA, the treatment does not meet the conditions for conducting impact assessments, not posing a high risk to the rights and freedoms of the affected individuals."

6º and 7º Security measures and information regarding the security breach that occurred on April 19, 2022 (notification to the AEPD, integrity, confidentiality, and security vectors).

It has been verified that on April 22, 2022, an initial notification was made to the AEPD of a availability breach caused by a ransomware cyberattack detected on April 19, 2022; and on June 3, 2022, a complete notification was made providing a report on the breach and the security measures before and after it.

In the breach, there is no evidence of data exfiltration, and the affected individuals have been informed through various public dissemination means.

Finally, regarding the Data Protection Officer, their functions have been defined in the Mayor's Resolution of March 3, 2021, published in the Official Bulletin of the Principality of Asturias No. 57 of March 24, 2021, also holding a position on the Information Security and Privacy Committee, according to the Mayor's Resolution of September 13, 2021, published in the Official Bulletin of the Principality of Asturias No. 188 of September 29, 2021.

Therefore, based on the information provided in the previous paragraphs, no evidence has been found to support the existence of an infringement within the jurisdiction of the Spanish Agency for Data Protection.

In accordance with the above, the Director of the Spanish Agency for Data Protection, IT IS AGREED: FIRST: TO FILE the present proceedings.

SECOND: TO NOTIFY this resolution to the CITY COUNCIL OF GIJÓN and to the complainant.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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